

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
KIRBY UNDERWOOD,

Plaintiff,

-against-

**AMENDED
COMPLAINT**

**JURY TRIAL
DEMANDED**

THE CITY OF NEW YORK, P.O. JAMES D. ARGILA,
Shield No. 15383, Individually and in His Official Capacity,
and P.O.s JOHN DOE # 1-10, Individually and in their Official
Capacities, (the name John Doe being fictitious, as the true names
are presently unknown),

Defendants.
-----X

Plaintiff, KIRBY UNDERWOOD, by his attorneys, Jon L. Norinsberg, PLLC,
complaining of the defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages
and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his
civil rights, as said rights are secured by said statutes and the Constitutions of the State of
New York and the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988,
and the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States
Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under 28 U.S.C. § 1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff is an African-American male and was at all relevant times a resident of the County of Kings, in the City and State of New York.

7. Defendant, the City of New York, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant, the City of New York, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, the City of New York.

9. At all times hereinafter mentioned, the individually named defendants, P.O. JAMES D. ARGILA, and P.O.s "JOHN DOE" #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. At all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with

the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant City of New York.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant City of New York.

FACTS

13. On or about June 10, 2017, at approximately 5:45 P.M., Plaintiff KIRBY UNDERWOOD, a minor, was lawfully present on a sidewalk at Alabama Avenue, between Hegeman Avenue and New Lots Avenue, in the County of Kings, in the City and in the State of New York.

14. At the aforementioned time and place, Plaintiff KIRBY UNDERWOOD had been walking from a park and heading to a family barbeque. While Plaintiff was walking on the sidewalk, an unmarked police vehicle abruptly pulled over and four undercover police officers jumped out of the car.

15. Plaintiff KIRBY UNDERWOOD was in shock and noticed that two unknown individuals, who were walking next to him on the sidewalk, ran towards one direction of Alabama Avenue, which prompted Plaintiff to run in the opposite direction while still processing what had just occurred.

16. Two of the defendant officers engaged in a pursuit of the two unknown individuals, while the other two defendant officers ran after Plaintiff KIRBY UNDERWOOD.

17. On the corner of Alabama Avenue and New Lots Avenue, defendant officers forcefully grabbed Plaintiff KIRBY UNDERWOOD and threw him on the floor, handcuffed him placed him on the sidewalk.

18. Plaintiff KIRBY UNDERWOOD inquired to defendant officers as to the reason why he was being handcuffed but was told by one of the officers to “Shut the F**k up!”

19. Thereafter, at a distance, Plaintiff KIRBY UNDERWOOD noticed the other two defendant officers walking towards his direction from Alabama Avenue.

20. After the officers regrouped, Plaintiff KIRBY UNDERWOOD overheard defendant officers say that a firearm had been recovered. Defendant officers would later claim, falsely, that they had recovered this firearm from Plaintiff. This was an outright fabrication as Plaintiff was never in possession of any firearm on June 10, 2017.

21. Thereafter, Plaintiff KIRBY UNDERWOOD was taken to the precinct and was interrogated by defendant officers, who primarily inquired as to his association with the other two individuals. Plaintiff repeatedly told the defendant officers that he did not know these individuals and had never seen them before.

22. Nevertheless, Plaintiff KIRBY UNDERWOOD was charged with Criminal Possession of a Firearm (Penal Law § 265.01-B(1)), and Criminal Possession of a Weapon in the Fourth Degree (Penal Law § 265.01 (1)). Plaintiff was then taken to Central Booking.

23. In connection with this unlawful arrest, defendant officers filled out false and misleading police reports, and forwarded these false reports to prosecutors in the Kings County District Attorney's Office.

24. Specifically, defendant officers made material and false statements about the basis of their seizure, stating that they had noticed the shape of a pocketknife inside Plaintiff's clothes and/or noticed an exposed portion of the pocketknife.

25. Plaintiff KIRBY UNDERWOOD was not carrying a pocketknife nor was he carrying anything that remotely looked like a pocketknife. Moreover, a pocketknife was not recovered from the scene or from Plaintiff KIRBY UNDERWOOD.

26. Defendant officers made deliberately false statements about seeing Plaintiff handing a bag with a firearm to the other two individuals.

27. At no time on June 10, 2017 did Plaintiff KIRBY UNDERWOOD possess any weapon, much less a firearm.

28. At no time on June 10, 2017 did Plaintiff KIRBY UNDERWOOD ever hand a bag with a firearm over to any other persons.

29. There was no physical evidence that connected Plaintiff KIRBY UNDERWOOD with the alleged firearm.

30. There was no DNA evidence connecting Plaintiff KIRBY UNDERWOOD with the alleged firearm.

31. There was no forensic evidence connecting Plaintiff KIRBY UNDERWOOD with the alleged firearm.

32. There were no fingerprints connecting Plaintiff KIRBY UNDERWOOD with the alleged firearm.

33. In sum, there was *no evidence* whatsoever connecting Plaintiff KIRBY UNDERWOOD to the alleged firearm.

34. On June 11, 2017, Plaintiff KIRBY UNDERWOOD was arraigned and released on his own recognizance.

35. Thereafter, for approximately six months, Plaintiff KIRBY UNDERWOOD was required to defend himself against the baseless criminal charges filed by defendant officers.

36. On December 21, 2017, all charges against Plaintiff KIRBY UNDERWOOD were dismissed.

37. As a result of the foregoing, Plaintiff KIRBY UNDERWOOD sustained, *inter alia*, loss of liberty for approximately two (2) days in jail and was thereafter required to make multiple court appearances until all charges were dismissed. In addition, Plaintiff KIRBY UNDERWOOD suffered emotional distress, embarrassment, humiliation and deprivation of his constitutional rights, and incurred attorney fees associated with his criminal defense.

FIRST CLAIM FOR RELIEF
(False Arrest Under 42 U.S.C. § 1983)

38. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "37" with the same force and effect as if fully set forth herein.

39. As a result of defendants' aforementioned conduct, Plaintiff KIRBY UNDERWOOD was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined,

incarcerated and prosecuted by the defendants in criminal proceedings, without any probable cause, privilege or consent.

40. As a result of the foregoing, Plaintiff KIRBY UNDERWOOD's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

SECOND CLAIM FOR RELIEF
(Malicious Prosecution Under 42 U.S.C. § 1983)

41. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "40" with the same force and effect as if fully set forth herein.

42. Defendants misrepresented and falsified evidence before the District Attorney.

43. Defendants did not make a complete and full statement of facts to the District Attorney.

44. Defendants withheld exculpatory evidence from the District Attorney.

45. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff KIRBY UNDERWOOD.

46. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff KIRBY UNDERWOOD.

47. Defendants acted with malice in initiating criminal proceedings against plaintiff KIRBY UNDERWOOD.

48. Defendants were directly and actively involved in the continuation of criminal proceedings against Plaintiff KIRBY UNDERWOOD.

49. Defendants lacked probable cause to continue criminal proceedings against Plaintiff KIRBY UNDERWOOD.

50. Defendants acted with malice in continuing criminal proceedings against Plaintiff KIRBY UNDERWOOD.

51. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

52. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in Plaintiff KIRBY UNDERWOOD's favor when all charges against him were dismissed on December 21, 2017

53. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF
(Denial of Constitutional Right to a
Fair Trial Under 42 U.S.C. § 1983)**

54. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "53" as if the same were more fully set forth at length herein.

55. Defendants created false evidence against Plaintiff KIRBY UNDERWOOD and forwarded false evidence and false information to prosecutors in the Kings County District Attorney's Office.

56. In creating false evidence against Plaintiff KIRBY UNDERWOOD, in forwarding false evidence and information to prosecutors, and in providing false and misleading testimony, defendants violated Plaintiff's constitutional right to a fair trial

under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

57. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

FOURTH CLAIM FOR RELIEF
(Malicious Abuse of Process Under 42 U.S.C. § 1983)

58. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "57" with the same force and effect as if fully set forth herein.

59. The aforementioned individual defendants issued legal process to place Plaintiff KIRBY UNDERWOOD under arrest.

60. The aforementioned individual defendants arrest Plaintiff KIRBY UNDERWOOD in order to obtain a collateral objective outside the legitimate ends of the legal process, namely to conceal the fact that they had allowed the real gun owner to get away by reason of their own improper handling of this situation.

61. The aforementioned individual defendants acted with intent to do harm to Plaintiff KIRBY UNDERWOOD, without excuse or justification.

62. As a result of the foregoing, Plaintiff KIRBY UNDERWOOD sustained, *inter alia*, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FIFTH CLAIM FOR RELIEF
(Municipal Liability)

63. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “62” as if the same were more fully set forth at length herein.

64. Defendants arrested and incarcerated Plaintiff KIRBY UNDERWOOD in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize Plaintiff’s liberty, well-being, safety and constitutional rights.

65. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

66. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

67. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted a deliberate indifference to the safety, well-being and constitutional rights of Plaintiff KIRBY UNDERWOOD.

68. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and

proximate cause of the constitutional violations suffered by Plaintiff KIRBY UNDERWOOD as alleged herein.

69. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff KIRBY UNDERWOOD as alleged herein.

70. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, Plaintiff KIRBY UNDERWOOD was incarcerated unlawfully.

71. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff KIRBY UNDERWOOD.

72. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiff KIRBY UNDERWOOD's constitutional rights.

73. All of the foregoing acts by defendants deprived Plaintiff KIRBY UNDERWOOD of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from unwarranted and malicious criminal prosecution;
- D. Not to have cruel and unusual punishment imposed upon him; and
- E. To receive equal protection under the law.

WHEREFORE, Plaintiff KIRBY UNDERWOOD demands judgment in the sum of one million dollars (\$1,000,000.00) in compensatory damages, one million dollars (\$1,000,000.00) in punitive damages, plus attorney's fees, costs, and disbursements of this action.

Dated: New York, New York
April 11, 2018

JON L. NORINSBERG, PLLC

BY: 

Diego O. Barros, Esq.
Attorneys for Plaintiff
225 Broadway, Suite 2700
New York, N.Y. 10007
Tel.: (212) 791-5396
Fax: (212) 406-6890

_____ District of _____

Plaintiff(s)

V.

Civil Action No.

Defendant(s)

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)*

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff’s attorney, whose name and address are:

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

DOUGLAS C. PALMER
CLERK OF COURT

Date:

Signature of Clerk or Deputy Clerk

Civil Action No. _____

PROOF OF SERVICE

(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))

This summons for *(name of individual and title, if any)* _____
was received by me on *(date)* _____ .

☐ I personally served the summons on the individual at *(place)* _____
_____ on *(date)* _____ ; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
_____, a person of suitable age and discretion who resides there,
on *(date)* _____ , and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____ , who is
designated by law to accept service of process on behalf of *(name of organization)* _____
_____ on *(date)* _____ ; or

☐ I returned the summons unexecuted because _____ ; or

☐ Other *(specify)*: _____ .

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ _____ .

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc:

AMENDED SUMMONS RIDER

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
KIRBY UNDERWOOD,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. JAMES D. ARGILA,
Shield No. 15383, Individually and in His Official Capacity,
and P.O.s JOHN DOE # 1-10, Individually and in their
Official Capacities, (the name John Doe being fictitious, as
the true names are presently unknown),

Defendants.

-----X

AMENDED SUMMONS

JURY TRIAL DEMANDED

18 Civ. 01988 (KAM) (CLP)

ECF CASE